

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8b-20c7-f3qx
Comments Due: March 15, 2025
Submission Type: API

Docket: NSF_FRDOC_0001

Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-7918

Comment on FR Doc # 2025-02305

Submitter Information

Name: Gary Buddell

General Comment

Gary Buddell

Web Developer, Game Developer

897 S Cowley St, Spokane, WA, 99202

I am an everyday American who makes their living building unique and high-quality websites for professional clients, and makes games as a hobby. I have worked hard for years to develop the skills and knowledge needed to work in these fields, and have been lucky enough to make a decent living and support my family – until recently.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses like the one I work for with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. My unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it, and then sell it back to our clients – directly competing with us and cutting us out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use". They claim that their software is worth billions of dollars, but it is only possible for that software to exist because they used our work and refused to pay anything for it. If they think their algorithm is capable of producing value, it simply stands to reason that they obtain a license and compensate those whose work is being used to create that value.

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking, without permission and without compensation. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate. If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

Want to protect American innovation? Protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is

preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

We should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.

Thank you for the opportunity to comment on these important issues.